

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Glenn Brown	Team: Team # 4	CCRB Case #: 201212363	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 08/22/2012 9:30 AM	Location of Incident: Silver Lake Park, 120th Precinct Stationhouse	Precinct: 120	18 Mo. SOL 2/22/2014	EO SOL 2/22/2014	
Date/Time CV Reported Mon, 09/24/2012 12:21 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 09/24/2012 12:21 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Brian Schulman	08380	939435	120 PCT
2. An officer			120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Spencer Garrett	16468	938538	007 PCT
2. SGT Richard Vomero	02348	932063	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A. POM Brian Schulman	Discourtesy: PO Brian Schulman spoke discourteously to § 87(2)(b) in front of Silver Lake Park in Staten Island and inside the 120th Precinct Stationhouse.	
B. An officer	Discourtesy: An officer spoke discourteously in the presence of § 87(2)(b) inside the 120th Precinct Stationhouse.	

Case Summary

On August 22, 2012, § 87(2)(b) filed this complaint with the CCRB over the telephone. On September 26, 2012, § 87(2)(b) provided a telephone statement to the CCRB and filed a duplicate complaint (CCRB# 201211112) by email on August 27, 2012.

On August 22, 2012 at approximately 9:30 am on the northern side of Silver Lake Park in Staten Island, § 87(2)(b) became engaged in a physical altercation with her child's father, § 87(2)(b). § 87(2)(b) fled the park and flagged down an RMP that was driving past. PO Brian Schulman and Sgt. Richard Vomero emerged from the RMP and began to mediate the dispute. PO Schulman was very nasty with § 87(2)(b) and cursed at her, though § 87(2)(b) struggled to recall exactly what language PO Schulman used. § 87(2)(b) was arrested and brought to the 120th Precinct stationhouse. PO Schulman continued to be nasty with § 87(2)(b) at the stationhouse. PO Schulman said, "Take your fuckin' shoes off," and "I don't got time to waste, bitch." While sitting in the holding cell, § 87(2)(b) overheard an unidentified female officer ask, "Who the fuck left this shit here? I'm not vouching it."

§ 87(2)(b) identified PO Schulman by reading both his nameplate and shield number. § 87(2)(b) had filed this complaint with the CCRB via email on August 27, 2012 (CCRB #201211112) and she identified PO Schulman in that complaint as well. The complaint was later forwarded to the Internal Affairs Bureau. § 87(2)(g)

§ 87(2)(b)

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Between September 26, 2012 and October 23, 2012, the undersigned investigator called § 87(2)(b) ten times, five times on both her mobile and home phone numbers, and sent § 87(2)(b) two letters. § 87(2)(b) home phone number did not have a working answering machine, so messages were only left on her mobile telephone's answering machine. On September 26, 2012, § 87(2)(b) was sent a first please call letter and this letter was not returned by the United States Postal Service. Also on September 26, 2012, § 87(2)(b) received a call on her mobile phone number. § 87(2)(b) provided a phone statement and scheduled an interview for October 2, 2012 at the CCRB. On October 2, 2012, § 87(2)(b) missed her appointment at the CCRB without calling to cancel or reschedule. Also on October 2, 2012, § 87(2)(b) was sent a missed appointment letter and this letter was not returned by the United States Postal Service. On October 3, 2012, § 87(2)(b) received a voicemail on her mobile phone number asking that she call the CCRB and a call that was placed to her home phone number was not answered and a voice mailbox did not engage. On October 10, 2012, a second phone call to § 87(2)(b) home phone number went unanswered and a voice mailbox did not engage. Also on October 10, 2012, a third phone call was placed to § 87(2)(b) mobile phone number and a voice message was left asking that § 87(2)(b) call the CCRB. On October 12, 2012, a third phone call was placed to § 87(2)(b) home phone number and the call went unanswered and a voice mailbox did not engage. Also on October 12, 2012, a fourth call was placed to § 87(2)(b) mobile phone number. § 87(2)(b) picked up and said that she was in court and would call back before 5:00 pm. § 87(2)(b) failed to call the CCRB. On October 15, 2012, a fourth and fifth call were placed to § 87(2)(b) home and mobile phone numbers,

respectively. A phone message was left on her mobile phone number asking that § 87(2)(b) call the CCRB and at her home number the phone went unanswered and a voice mailbox did not engage. On October 23, 2012, a fifth call was placed to § 87(2)(b) home phone number and a busy signal was received. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Team: 4

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date